

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Tileyah Williams	Team: Squad #06	CCRB Case #: 202206654	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Thursday, 09/29/2022 2:00 PM, Thursday, 09/29/2022 2:10 PM	Location of Incident: Front of § 87(2)(b) 121st Precinct stationhouse	18 Mo. SOL 3/29/2024	Precinct: 121		
Date/Time CV Reported Tue, 10/04/2022 12:25 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 10/04/2022 12:25 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Leonid Shatkin	03274	947487	NARC SI

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Jelson Goyco	02019	926897	NARC SI
2. PO Nicholas Bacarella	00223	963385	NARC SI
3. PO Paul Bartelotti	18972	958794	NARC SI
4. PO Kasey Mckeen	16649	967999	NARC SI
5. PO Nicholas Festa	08773	963516	NARC SI
6. PO Michael Cea	07817	965685	NARC SI
7. DT3 Sean Gardner	03607	954851	NARC SI
8. SGT Jesse Pinto	04505	939233	NARC SI
9. DT3 Michael Forster	01250	952742	NARC SI
10. SGT Robert Rastetter	03718	953303	121 PCT

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Leonid Shatkin	Off. Language: At various locations, Detective Leonid Shatkin made remarks based on § 87(2)(b) gender identity.	A . Substantiated
B . DT3 Leonid Shatkin	Discourtesy: At various locations, Detective Leonid Shatkin spoke discourteously to § 87(2)(b)	B . Substantiated
C . DT3 Leonid Shatkin	Abuse: At the 121st Precinct stationhouse, Detective Leonid Shatkin searched § 87(2)(b)	C . Unfounded
D . DT3 Leonid Shatkin	Off. Language: At the 121st Precinct stationhouse, Detective Leonid Shatkin made remarks based on § 87(2)(b) gender identity.	D . Unsubstantiated
E . DT3 Leonid Shatkin	Discourtesy: At the 121st Precinct stationhouse, Detective Leonid Shatkin spoke discourteously to § 87(2)(b)	E . Unsubstantiated
F . DT3 Leonid Shatkin	Abuse: At the 121st Precinct stationhouse, Detective Leonid Shatkin sexually humiliated § 87(2)(b)	F . Substantiated

Case Summary

On October 4, 2022, § 87(2)(b) filed this complaint over the phone with the CCRB.

On September 29, 2022, Detective Leonid Shatkin and members of the Narcotics Borough of Staten Island (NARC SI) arrested § 87(2)(b) for criminal possession of a controlled substance and criminal sale of a controlled substance. § 87(2)(b) is a transgender woman. § 87(2)(b) explained this to Det. Shatkin; however, he proceeded to call her, “Sir” (**Allegations A and B: Abuse of Authority, substantiated**).

Det. Shatkin allegedly searched § 87(2)(b) and asked her whether she was wearing gaffer underwear (**Allegation C: Abuse of Authority, unfounded**) and (**Allegations D and E: Abuse of Authority, unsubstantiated**). Det. Shatkin watched § 87(2)(b) while she used the restroom (**Allegation F: Abuse of Authority, substantiated**).

The Narcotics Borough of Staten Island are not equipped with body worn cameras. The investigation obtained videos from the stationhouse (**01, 02 Bord Review**).

Findings and Recommendations

Allegation (A) Offensive Language: At various locations, Detective Leonid Shatkin made remarks based on § 87(2)(b) gender identity.

Allegation (B) Discourtesy: At various locations, Detective Leonid Shatkin spoke discourteously to § 87(2)(b)

Prior to September 30, 2022, Det. Shatkin investigated a report made by an individual, that § 87(2)(b) sold a controlled substance (See DD5, pg. 241) (**03 Board Review**). § 87(2)(b) September 30, 2022, at approximately 2:00pm, Det. Shatkin arrived at § 87(2)(b) house, at § 87(2)(b) in Staten Island to arrest her. Det. Shatkin arrived with additional officers from NARC SI, including Police Officer Kasey McKeon.

§ 87(2)(b) testified that she went outside her house because an individual texted her, instructing her to do so (**04 Board Review**). As she walked outside, Det. Shatkin approached her and called out, § 87(2)(b) § 87(2)(b) corrected the detective and told him that her name is § 87(2)(b) and that she uses she/her pronouns. Det. Shatkin told § 87(2)(b) that she was under arrest and placed her in handcuffs. § 87(2)(b) asked why she was being placed under arrest and Det. Shatkin said, “Sir, I can’t tell you why you are being arrested.” As she was handcuffed, PO McKeon searched her pockets and patted around her breast line. While they were at the arrest location, Det. Shatkin called § 87(2)(b) “Sir” approximately 20 times when speaking to her. At one point, Det. Shatkin started to say ma’am and then corrected himself to say sir. Det. Shatkin and PO McKeon walked § 87(2)(b) to a dark blue van and transported her to the 121st Precinct stationhouse.

On the way to the stationhouse, § 87(2)(b) asked again why she was being arrested and Det. Shatkin referred to her as sir and responded, “Don’t you understand; you have a

warrant?” § 87(2)(b) again explained that her pronouns are she and her and Det. Shatkin said, “Okay, sir.” At some point after arriving at the stationhouse, Det. Shatkin repeated, “Sir, I can’t explain why you’re being arrested.”

Det. Shatkin testified that in his investigation, prior to the arrest, he learned that § 87(2)(b) was known in the E-Justice and FBI system as § 87(2)(b) § 87(2)(b) but that she was a transgender woman (**05 Board Review**). Before arriving to § 87(2)(b) house, he had a meeting and explained to officers that § 87(2)(b) is transgender and that they should be sensitive of her appearance. Det. Shatkin said that once he arrived at the location, he only referred to § 87(2)(b) as § 87(2)(b) or § 87(2)(b) § 87(2)(b) said that she preferred to be called § 87(2)(b) but Det. Shatkin called her § 87(2)(b) because it is the name that appeared in his NYPD database. He did not call her § 87(2)(b) to intentionally offend her. While he was placing § 87(2)(b) under arrest, she asked why she was being arrested and Det. Shatkin told her that he could not tell her because it was a sealed indictment. Det. Shatkin asked § 87(2)(b) whether she wanted to be identified as male or female and when she said female, he had PO McKeon search her. Det. Shatkin did not recall calling § 87(2)(b) sir and said that he only calls prisoners what they preferred to go by. Det. Shatkin referred to § 87(2)(b) as, “her/him,” during his interview with the CCRB. On their way to the stationhouse, § 87(2)(b) continued to ask Det. Shatkin why she was arrested. Det. Shatkin explained to § 87(2)(b) that he could not speak to her and to wait until she got a lawyer. He denied calling her sir during the transport and denied calling her, “Sir,” at the stationhouse.

PO McKeon’s testimony was consistent with Det. Shatkin’s (**06 Board Review**). She heard Det. Shatkin inform officers before arriving, that § 87(2)(b) was a transgender woman. At the meeting, Det. Shatkin used both, “§ 87(2)(b)” and “§ 87(2)(b)” to refer to § 87(2)(b) PO McKeon noted that she saw § 87(2)(b) name listed as § 87(2)(b) in their NYPD DAS database. She did not remember hearing how Det. Shatkin addressed § 87(2)(b) and whether it was by name or title. She rode with § 87(2)(b) and Det. Shatkin from the incident location to the stationhouse but did not hear the conversation in the vehicle where Det. Shatkin allegedly called § 87(2)(b) sir twice. She did not hear Det. Shatkin use the word, “Sir”, to address § 87(2)(b)

Using discourteous or disrespectful remarks regarding another person’s age, ethnicity, race, religion, gender, gender identity/expression, sexual orientation or disability is prohibited Administrative Guide Procedure 304-06 (**07 Board Review**). Officers should address the public using pronouns, titles of respect, and preferred name appropriate to the individual’s gender identity/expression as expressed by the individual. The term “gender” shall include actual or perceived sex and shall also include a person’s gender identity, self-image, appearance, behavior, or expression, whether that gender identity, self-image, appearance, behavior, or expression is different from that traditionally associated with the legal sex assigned to that person at birth. Members of service must maintain a higher standard of integrity than is generally expected of others, value human life, respect the dignity of each individual and render services with courtesy and civility Patrol Guide Procedure 200-02 (**08 Board Review**).

All parties testified that after Det. Shatkin learned that § 87(2)(b) was a transgender woman, he still referred to her as, “§ 87(2)(b)” because she was listed in an NYPD and FBI

database by this name. § 87(2)(b) said that Det. Shatkin called her, “Sir” at the incident location, en route to the stationhouse and once they reached the stationhouse. Both officers denied that Det. Shatkin called § 87(2)(b) sir. § 87(2)(g)

§ 87(2)(b) it is undisputed that he did not consistently address her as a woman like she preferred, § 87(2)(g)

§ 87(2)(b) is therefore recommended that **Allegations A** and **B** be closed as *substantiated*.

Allegation (C) Abuse of Authority: At the 121st Precinct stationhouse, Detective Leonid Shatkin searched § 87(2)(b)

Allegation (D) Offensive language: At the 121st Precinct stationhouse, Detective Leonid Shatkin made remarks based on § 87(2)(b) gender identity.

Allegation (E) Discourtesy: At the 121st Precinct stationhouse, Detective Leonid Shatkin spoke discourteously to § 87(2)(b)

Allegation (F) Abuse of Authority: At the 121st Precinct stationhouse, Detective Leonid Shatkin sexually humiliated § 87(2)(b)

Stationhouse footage from the cell area, shows that at 18:50 minutes, PO McKeon and Det. Shatkin walk into the holding cell area with § 87(2)(b) (**01 Board Review**). PO McKeon takes off § 87(2)(b) handcuffs and § 87(2)(b) sits down and removes her shoes and socks. At 21:42 minutes, both Det. Shatkin and PO McKeon lead § 87(2)(b) away from the camera toward a gray door with a rectangular glass window (the bathroom). § 87(2)(b) enters the bathroom and Det. Shatkin closes the door. He momentarily stares into the window (21:47minutes- 21:54minutes). Det. Shatkin stands near the closed door, while PO McKeon stands behind and to the left side of him. At 22:05 minutes, PO McKeon stands on her tip toes to look toward the window. At 22:07 minutes, Det. Shatkin looks through the window and looks away at 22:10 minutes. Det. Shatkin continues these short glances through the bathroom window until 23:06 minutes of the recording. Det. Shatkin opens the door at 23:06 minutes and walks into the bathroom while § 87(2)(b) is in there. Stationhouse footage which depicts the entryway to the bathroom, shows that at 23 minutes, § 87(2)(b) approaches the bathroom door when Det. Shatkin opens it (**02 Board Review**). She is fully clothed. Det. Shatkin stands in the doorway of the bathroom until 23:48 minutes. He and § 87(2)(b) then leave the bathroom. Stationhouse footage which depicts the holding cell area shows that at 23: 49 minutes, § 87(2)(b) is immediately lodged into her cell after using the bathroom.

§ 87(2)(b) testified that prior to being placed in the holding cells, she asked Det. Shatkin if she can use the restroom (**04 Board Review**). Det. Shatkin walked § 87(2)(b) to the bathroom and before she could use it, he searched her. While she was in the bathroom, Det. Shatkin asked § 87(2)(b) whether she was wearing, “gaffer underwear” (compression underwear to tuck her genitals) because he would have to take them from her, as they were not allowed to be with her. § 87(2)(b) said that she was not wearing them. While § 87(2)(b) urinated, she saw through the window on the door that Det. Shatkin was watching her urinate. She did not know where PO McKeon was during this time. § 87(2)(b) noted that she was squatting to urinate because she could not sit on the dirty toilet. Once she was done, Det. Shatkin escorted her to a holding cell.

The investigation pled Allegation C because while officers are permitted to search prisoners, the Patrol Guide Procedure 208-05 specifies that prisoners should be searched by officers of the same gender (**09 Board Review**).

Det. Shatkin testified that when they got to the stationhouse, PO McKeon searched § 87(2)(b) at the front desk (**05 Board Review**). She searched her pockets, crotch area, inside her bra, under her armpits, her socks and frisked her legs. Det. Shatkin denied searching her. § 87(2)(b) used the bathroom, butt prior to doing so, Det. Shatkin told her not to flush the toilet so that he could ensure that she was not flushing any drugs. Det. Shatkin noted that sometimes, people hid drugs in their crotch area and tried to flush them down the toilet when they asked to use the bathroom. When § 87(2)(b) used the bathroom, Det. Shatkin looked at her through the window to make sure she was not flushing anything down the toilet. Once § 87(2)(b) was done, he looked in the toilet to make sure nothing was there and lodged her into a cell. Det. Shatkin did not ask § 87(2)(b) about gaffer underwear and said that he did not know what they were. After they were explained to him, he said that there is no reason that they would not be allowed in the cells.

PO McKeon testified that Det. Shatkin did not search § 87(2)(b) and never physically touched her (**06 Board Review**). She did not know what gaffer underwear are and did not hear Det. Shatkin mention anything about them. PO McKeon saw Det. Shatkin looking in the window at § 87(2)(b) while she used the restroom. Though he did not say this, PO McKeon knew that he was making sure that she did not flush any drugs down the toilet. PO McKeon also looked to make sure § 87(2)(b) did not flush any drugs down the toilet.

Officers must conduct a thorough search of prisoners Patrol Guide Procedure 208-02 (**10 Board Review**), but as mentioned earlier, they should be searched by officers of the same gender (**09 Board Review**). Members of service must maintain a higher standard of integrity than is generally expected of others, value human life, respect the dignity of each individual and render services with courtesy and civility Patrol Guide Procedure 200-02 (**08 Board Review**). Using discourteous or disrespectful remarks regarding another person's age, ethnicity, race, religion, gender, gender identity/expression, sexual orientation or disability is prohibited Administrative Guide Procedure 304-06 (**07 Board Review**).

§ 87(2)(g)

§ 87(2)(b) The footage shows all of § 87(2)(b) interactions with officers in the vicinity of the bathroom and did not show Det. Shatkin searching her. § 87(2)(g) it is recommended that **Allegation C** be closed as *unfounded*.

§ 87(2)(b) said that Det. Shatkin asked her whether she was wearing gaffer underwear, but he denied this, and PO McKeon said that she did not hear this. Det. Shatkin claimed that he was not familiar with gaffer underwear and after they were explained to him, said that § 87(2)(b) would have been allowed to wear them. § 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegations D and E** be closed as *unsubstantiated*.

[REDACTED]
 [REDACTED]
 [REDACTED]
 [REDACTED]
 [REDACTED]
 [REDACTED]
 [REDACTED] it is recommended that **Allegation F** be closed
 as *substantiated*.

- § 87(2)(b)
[REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
- Det. Shatkin has been a member of service for 14 years and has been a subject in 17 other CCRB complaints and 45 other allegations, none of which were substantiated.
§ 87(2)(g)
[REDACTED]
[REDACTED]

- This complaint was not suitable for mediation.
- As of December 14, 2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed regarding this incident (**12 Board Review**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]

Investigator:	<u>Tileyah Williams</u> Signature	<u>SI Tileyah Williams</u> Print Title & Name	<u>01/03/2023</u> Date
Squad Leader:	<u>Jessica Peña</u> Signature	<u>IM Jessica Peña</u> Print Title & Name	<u>1/3/2023</u> Date
Reviewer:	<u></u> Signature	<u></u> Print Title & Name	<u></u> Date